

U.O.Note No.1798/SC.E/87-1, Genl.Admn. (SC.E) Dept., dt.20.10.1987 regarding avoiding of reference to Anti-Corruption Bureau in correspondence.

Subject Heading : ACB - not to quote in references or charges

- Ref :
1. G.O.Ms.No. 677, GA (Ser.D) Department. dt.30.05.61.
 2. U.O.Note No.664/SC.D/87-1, GA (SC.D) Department, dt.29.06.87.
 3. Memo.No.490/SC.E/87-1, GA (SC.E) Department, dt.13.03.87.

In the reference 1st cited relating to consolidated set of instructions regarding enquiries against Government Servants into cases of corruption, it has been stated as follows:-

“When making references to Heads of Departments, about enquiries made by the Anti-Corruption Bureau or while issuing orders in cases of corruption against Government Servants etc. the sources of investigation should not be divulged. So, instead of using the expression “it has been ascertained by the Anti-Corruption Bureau etc” the following expression may be used:-

“It has been ascertained by discreet enquiries through the appropriate departments etc”,

2. Based on the above, it has been clarified in the reference second cited, that on completion of investigation / enquiry, the Anti-Corruption Bureau will send final report to Government in two parts i.e., Part - ‘A’ and ‘B’ (in duplicate) - Part ‘A’ containing a secret report given in complete confidence containing full particulars of the investigation for the information of the Government and Part ‘B’ containing a confidential report of only relevant information and also the statements of witnesses to be communicated by the Government to the authority concerned for taking disciplinary action. Part-B reports are sent to the Enquiry Officers by the Government to enable them to frame charges etc. and it is a confidential document not to be furnished to the delinquent officer(s). The Departments of Secretariat have been requested to guard against the misplacement of Anti-Corruption Bureau reports and unauthorized persons coming into possession of the report and also against leakage of the Anti Corruption Bureau reports to the accused officers.

3. The Commissioner for Departmental Enquiries has brought to the notice of the Government that the orders of the Government appointing him as Enquiry officer are not only marked to the delinquent officer but also marked to the Director General, Anti-Corruption Bureau and a reference is also made to the Anti-Corruption Bureau in the order, thus enabling the delinquent officers to know about the Anti Corruption Bureau enquiry in the matter and leading to their asking

for a copy of the Anti-Corruption Bureau report for preparing their defense, refusal of which will be against the principles of natural justice. He has also stated that the Enquiry Officer has to be appointed only after the written statement of defence is received from the Charged Officer by the disciplinary authority and after consideration of the same as per the instructions contained in the Memo. No.490/SC.E/87-1, dt.13.03.1987. He has, therefore, requested to issue suitable instructions for guidance.

4. In view of the above, the Departments of Secretariat are requested not to make mention of the correspondence with the Anti-Corruption Bureau in their order appointing the Inquiry Officer and also not to mark a copy of the order to the Anti-Corruption Bureau but send a copy of the order to the Anti-Corruption Bureau separately. Similarly, a separate communication should be sent to furnishing documentation to the Inquiry Officer. Further, the Departments have to take action as per Memo.No.490/SC.E/87-1, dt.13.03.87 and appoint Inquiry Officer only after the written statement of defence is received from the charged officer and considered by them.